

SENATE No. 987

The Commonwealth of Massachusetts

PRESENTED BY:

Ryan C. Fattman

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to housing developments in small communities.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Ryan C. Fattman</i>	<i>Worcester and Hampden</i>	
<i>Justin Thurber</i>	<i>5th Bristol</i>	<i>3/21/2025</i>

SENATE No. 987

By Mr. Fattman, a petition (accompanied by bill, Senate, No. 987) of Ryan C. Fattman relative to housing developments in communities with a population less than 30,000 persons. Housing.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1325 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to housing developments in small communities.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 21 of chapter 40B of the General Laws, as appearing in the 2022 Official Edition,
2 is hereby amended by inserting the following paragraph:-

3 “Any town consisting of less than 30,000 in population shall be exempt from all rules and
4 restrictions currently applicable. Said communities shall not be compelled or forced in any way,
5 shape or manner by the Commonwealth to accept legislation which mandates and accommodates
6 any form of chapter 40B housing projects unless the project receives approval of no less than a
7 seventy percent favorable vote of the registered voters at a town election or general election of
8 said community. Any chapter 40B proposed projects in the Commonwealth involving towns or
9 cities having less than 30,000 in population shall be held in ‘suspension or abeyance’ until such
10 time as this proposed legislation can be decided by the general court”.